

**PARLIAMENT OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF
SRI LANKA**

**POISONS, OPIUM AND DANGEROUS DRUGS
(AMENDMENT)**

A

BILL

**to amend the Poisons, Opium and Dangerous Drugs
Ordinance (Chapter 218)**

*Presented by the Minister of Justice and National Integration
on 18th of December, 2025*

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Ordered by Parliament to be printed

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STATEMENT OF LEGAL EFFECT

Clause 2 : This clause inserts new section 54^{AA} in the Poisons, Opium and Dangerous Drugs Ordinance (Chapter 218) (hereinafter referred to as the “principal enactment”) and the legal effect of this section is to make new provisions prohibiting the manufacture, possession or trafficking of dangerous drugs on high seas, by any person, whether he is a citizen of Sri Lanka or not.

Clause 3: This clause amends section 54^B of the principal enactment and is consequential to the insertion of new section made by clause 2.

Clause 4: This clause amends section 78 of the principal enactment and is consequential to the insertion of new section made by clause 2.

Clause 5: This clause amends section 83 of the principal enactment and is consequential to the insertion of new section made by clause 2.

Clause 6: This clause amends section 84 of the principal enactment and is consequential to the insertion of new section made by clause 2.

Clause 7: This clause amends section 85 of the principal enactment and is consequential to the insertion of new section made by clause 2.

Clause 8: This clause amends section 86 of the principal enactment and is consequential to the insertion of new section made by clause 2.

Clause 9: This clause amends section 87 of the principal enactment and is consequential to the insertion of new section made by clause 2.

L.D. - O 39/2024

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows: -

5 **2.** The following new section is hereby inserted immediately after section 54A of the Poisons, Opium and Dangerous Drugs Ordinance (Chapter 218) (hereinafter referred to as the “principal enactment”) and shall have effect as section 54AA of that Ordinance:-

Insertion of
new section
54AA in
Chapter 218

15 or trafficking of dangerous drugs on high seas.

(a) on the high seas, while on board a ship registered in Sri Lanka or in a State other than Sri Lanka or a stateless ship; and

(b) except as permitted by, or otherwise than in accordance with the provisions of this Chapter or a licence of the Director,

20 manufactures, possesses or trafficks any dangerous drug set out in Part III of the Third Schedule, in excess of the amount set out in Column II of Part III of the said Schedule, shall

Poisons, Opium and Dangerous Drugs
(Amendment)

be guilty of an offence and shall, on conviction by the High Court, be liable to the penalty set out in the corresponding entry in Column III of Part III of the said Schedule.

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(2) Any stateless ship engaged in the commission of an offence referred to in subsection (1) shall be subject to forfeiture and the provisions of section 79 shall *mutatis mutandis* apply in relation to such ship.

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(3) For the purposes of this section-

“high seas” shall have the meaning assigned to it under the United Nations Convention on the Law of the Sea (UNCLOS);

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“manufacture” shall have the same meaning as in subsection (3) of section 54A;

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“stateless ship” means any vessel that is not registered under the laws of any State or does not possess a flag;

“traffick” shall have the same meaning as in subsection (3) of section 54A.”.

25 3. Section 54B of the principal enactment is hereby amended by the substitution for the words and figures “section 54A,” of the words and figures “sections 54A and 54AA,”.

Amendment
of section 54B
of the
principal
enactment

4. Section 78 of the principal enactment is hereby amended in subsection (5) of that section by the substitution for the words and figures “other than a person guilty of an offence under section 54A,”, of the words and figures “other than a person guilty of an offence under sections 54A and 54AA,”.

Amendment
of section 78
of the
principal
enactment

5. Section 83 of the principal enactment is hereby amended as follows:-

Amendment
of section 83
of the
principal
enactment

(1) in subsection (1) of that section by the substitution for the words and figures “sections 54A and 54B”, of the words and figures “sections 54A, 54AA and 54B”;

(2) in subsection (2) of that section by the substitution for the words and figures “subsection (1) of section 54A and section 54B”, of the words and figures “subsection (1) of sections 54A, subsection (1) of section 54AA and section 54B”; and

(3) in the marginal note to that section by the substitution for the words and figures “sections 54A and 54B”, of the words “sections 54A, 54AA and 54B”.

6. Section 84 of the principal enactment is hereby amended by the substitution for the words and figures “subsection (1) of section 54A and section 54B”, of the words and figures “subsection (1) of section 54A, subsection (1) of section 54AA and section 54B”.

Amendment
of section 84
of the
principal
enactment

7. Section 85 of the principal enactment is hereby amended by the substitution for the words and figures “subsection (1) of section 54A and section 54B”, of the words and figures “subsection (1) of section 54A, subsection (1) of section 54AA and section 54B”.

Amendment
of section 85
of the
principal
enactment

8. Section 86 of the principal enactment is hereby amended as follows:-

Amendment
of section 86
of the
principal
enactment

(1) in subsection (1) of that section by the substitution for the words and figures “section 54 or paragraphs (b), (c) or (d) of subsection (1) of section 54A”, of the words and figures “section 54, paragraphs (b), (c) or (d) of subsection (1) of section 54A or subsection (1) of section 54AA”; and

(2) in subsection (3) of that section by the substitution for the words and figures “section 54 or subsection (1) of section 54A,”, of the words and figures “section 54, subsection (1) of section 54A or subsection (1) of section 54AA,”.

9. Section 87 of the principal enactment is hereby amended by the substitution for the words and figures “section 52, section 54, paragraphs (b), (c) and (d) of subsection (1) of section 54A and section 54B”, of the words and figures “section 52, section 54, paragraphs (b), (c) and (d) of subsection (1) of section 54A, subsection (1) of section 54AA and section 54B”.

Amendment
of section 87
of the
principal
enactment

10. In the event of any inconsistency between the Sinhala and Tamil texts of this Act the Sinhala text shall prevail.

Sinhala text
to prevail in
case of
inconsistency

